

Defendants move to compel Plaintiff's deposition to take place within 15 days. On 11/20/25, Defendants served a notice of deposition for deposition to take place on 2/3/26. Plaintiff's counsel emailed unavailability and objected. Defendants followed up asking for alternative dates, but Plaintiff failed to provide any dates.

In an untimely opposition, Plaintiff contends that he is seeking to dismiss the claims and requests the court continue the hearing 30 days to allow the dismissal or deem the motion as moot.

Motion to Compel Deposition of Plaintiff

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., § 2025.280(a).) Section 2025.450(a) states: "If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (emphasis added.) The parties are required to meet and confer, or in the case of a nonappearance, the moving party inquired about the nonappearance. (*Id.* at § 2025.450(b)(2).)

Here, Plaintiff does not dispute that he failed to appear, but instead, intends to dismiss the action. Court will continue the instant motion to the current TSC date of August 11, 2026 with expectation that deposition has moved forward or Plaintiff has dismissed their claims.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601132	CAMERILLO VS ROSALES	DEMURRER ON 1ST AMENDED COMPLAINT OF DANIEL CAMERILLO AS TO EIGHTH CAUSE OF ACTION BY JAVIER ROSALES, ARMANDO ALVAREZ, ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION

Tentative Ruling: Overruled.

Moving Defendant to file their answer to operative complaint within 20 days of this order becoming final.

Court to provide notice.

The court also sets an OSC re: sanctions as to Plaintiff's counsel Attorney Ben-Ari regarding his refusal to meet and confer by phone with Defendants' counsel as required by CCP section 430.41 for September 1, 2026 at 8:30 a.m. in Department PS2.

This is a wrongful termination action filed on February 9, 2026 by Plaintiff Daniel Camerillo against Defendants Armando Bar & Grill, Inc., Javier Rosales and Armando Alvares alleging 8 causes of action for 1) wrongful termination in violation of public policy, 2) whistleblower retaliation, 3) failure to provide meal periods, 4) failure to provide rest periods, 5) failure to pay minimum wages, 6) failure to provide accurate itemized wage statements, 7) waiting-time penalties and failure to provide wages upon termination, and 8) UCL violations.

Defendants demurred to the Complaint. In response, Camerillo filed a First Amended Complaint alleging the same 8 causes of action and adding a 9th cause of action for failure to permit inspection of personnel and payroll records.

Defendants now demur to the 8th cause of action in the FAC for UCL violations on the grounds that the UCL claim is not sufficient as the class allegations under CCP section 382 are absent, specifically the lack of ascertainability of a class, the numbers and identification of a putative class and the lack of allegations showing how a class action is superior to individual actions for the litigants or court.

In opposition, Plaintiff asserts that the UCL claim is brought in his individual capacity and not on behalf of a class; therefore, the demurrer lacks merit.

The court also sets an OSC re: sanctions as to Plaintiff's counsel Attorney Ben-Ari regarding his refusal to meet and confer by phone with Defendants' counsel as required by CCP section 430.41.

Demurrer

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

8th Cause of Action - UCL Violation(s)

In order to state a claim for a violation of the UCL, Plaintiff must allege that Defendant committed a business act or practice that is fraudulent, unlawful, or unfair. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) As all of the other 8 causes of action stand and were not challenged, the FAC properly alleges a UCL violations cause of action by Plaintiff individually.

Here, the FAC is brought solely in Plaintiff’s individual capacity and not on behalf of a class. Therefore, Defendants’ demurrer on that ground lacks merit. OVERRULED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2601155	SMITH, AN INDIVIDUAL VS SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF AMBER NICOLE SMITH, AN INDIVIDUAL BY SOUTHERN CALIFORNIA GAS COMPANY

Tentative Ruling: Granted.

No opposition filed.

The following portions of the First Amended Complaint are hereby stricken:

- a. Paragraph 31, in its entirety (8:10-12);
- b. Paragraph 32, item “d” (8:19);
- c. Paragraph 39, in its entirety (9:13-17);
- d. Paragraph 41, item “d” (9:26);
- e. Paragraph 49, in its entirety (10:27-11:5);
- f. Paragraph 52, item “d” (11:18);
- g. Paragraph 3 of the Prayer for Relief (11:27).

Moving party to provide notice pursuant to CCP 1019.5.

This action arises out of a motor vehicle accident. On February 11, 2026, Plaintiffs Amber Nicole Smith and Sylvia Perfecto (“Plaintiffs”) filed a Complaint against Defendants Southern California Gas Company (“SoCal Gas”) and Ernesto Partida-Granados (“Partida-Granados”) (together “Defendants”) for: (1) negligence (against Partida-Granados); (2) negligent entrustment (against SoCal Gas); and (3) negligent hiring, supervision, and/or retention (against SoCal Gas).

The operative 1st Amended Complaint was filed on May 29, 2026.

SoCal Gas moves to strike Plaintiffs claim for punitive damages, arguing Plaintiffs’ fail to allege facts showing fraud, oppression, or malice.